

Muzammil @ Meenu And 9 Others v. State Of U.P. And 4 Others

High Court of Judicature at Allahabad · Division Bench · 16 April 2025 · Criminal Misc. Writ Petition No. 5131 of 2025 · **FIR-quash petition listed; arrest stayed pending consideration**

HEADNOTE

Criminal writ to quash an FIR that included dacoity and other BNS offences, with a plea that alleged electricity misuse should have been pursued under the Electricity Supply Code, 2005 and the Electricity Act, 2003. The Court only recorded that the matter required consideration, issued notice, and stayed arrest till the next listing or the police report.

FACTUAL SUMMARY

Ten petitioners sought to quash FIR dated 07.03.2025 (Case Crime No. 225 of 2025, P.S. Bahedi, Bareilly) under Bharatiya Nyaya Sanhita, 2023 provisions including Section 310(2) dacoity. Counsel submitted that except dacoity the remaining offences carried imprisonment of seven years or less, that dacoity was not made out on the FIR, and that if the respondents were aggrieved by electricity misuse they should have proceeded under the Electricity Supply Code, 2005 and the Electricity Act, 2003.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::procedural-listing

FIR quash listing — alleged electricity misuse as BNS offences

HOLDING

The Court recorded that the petitioners had made out a case requiring consideration, issued notice to respondent no. 4, and directed counter and rejoinder affidavits. Arrest was stayed till the next date of listing or till submission of the police report, whichever is earlier. No finding was recorded on whether the FIR should be quashed or whether alleged electricity misuse had to be pursued under the Supply Code or the Electricity Act. ¶ 4-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FIR DATED 07.03.2025 IS LIABLE TO BE QUASHED

¶ 2-5

NOT DECIDED — WHETHER ALLEGED ELECTRICITY MISUSE MUST BE PROCEEDED UNDER THE ELECTRICITY SUPPLY CODE, 2005 AND THE ELECTRICITY ACT, 2003 RATHER THAN THE BHARATIYA NYAYA SANHITA, 2023

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